

24NNCV06446 24NNCV06446

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-20

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C08%2F20%2F2026

Source SHA-256: 99318e36a14822c61f06dcdf335bb843cfc724335aa99eb65457950a37945ca8

Case Number: 24NNCV06446 Hearing Date: August 20, 2026 Dept: P

[TENTATIVE] ORDER DENYING DEFENDANTS' MOTION FOR SUMMARY JUDGMENT

I. INTRODUCTION

Plaintiffs Gohar Bosnuyan, Eric Vivanco-Perez and David Bosnuyan, a minor, by Gohar Bosnuyan as his guardian ad litem ("Plaintiffs"), bring this action against Defendants Hyland Inn Near Pasadena Civic Center; RVN Inc. and Vimal Patel ("Defendants"), alleging causes of action for (1) battery, (2) negligence, (3) intentional infliction of emotional distress, (4) fraudulent concealment, (5) private nuisance, (6) public nuisance, and (7) breach of contract. Plaintiffs allege they were knowingly assigned to a hotel room infested with bedbugs, which caused physical and emotional injuries, property damage, and other harm.

On March 3, 2026, Defendants filed the instant motion for summary judgment, or in the alternative, summary adjudication. Plaintiffs filed an opposition on May 28, 2026, and Defendants filed a reply on June 2, 2026.

II. LEGAL STANDARD

The purpose of a motion for summary judgment "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established." (Code Civ. Proc., § 437c(p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (*Id.*) "If the plaintiff cannot do so, summary judgment should be granted." (*Avivi v. Centro Medico Urgente Med. Ctr.* (2008) 159 Cal.App.4th 463, 467.)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (*Avivi, supra*, 159 Cal.App.4th at p. 467; see also Code Civ. Proc., § 437c, subd. (c).)

III. ANALYSIS

This is an action arising from Plaintiffs Gohar Bosnuyan, Eric Vivanco-Perez, and minor David Bosnuyan's alleged exposure to bedbugs while staying at the Hyland Inn in Pasadena from December 16 through December 21, 2022, and December 31, 2023. Plaintiffs allege that Defendants RVC Inc., Hyland Inn, and Vimal Patel knew or should have known of the presence of bedbugs at the hotel, failed to adequately inspect or remediate the condition, and that Plaintiffs suffered injuries as a result.

Defendants move for summary judgment, or in the alternative, summary adjudication of Plaintiffs' causes of action for battery, negligence, intentional infliction of emotional distress, fraudulent concealment, and breach of contract, as well as Plaintiffs' claim for punitive damages. Defendants principally contend that Plaintiffs cannot establish that bedbugs were present at the hotel or that Defendants failed to reasonably respond after Plaintiffs reported the alleged condition. (Notice, p. 2; Motion, pp. 8-10.) Defendants assert that hotel staff immediately inspected Plaintiffs' room, on December 21, 2022, after Plaintiffs reported bedbugs and found no evidence of bedbugs or their telltale signs. (Id. at 10.) Defendants further rely on a December 2025 entomologist report finding no evidence of bedbugs at the hotel and City of Pasadena inspection records from 2025. (Id. at pp. 9-11; SS Nos. 1-7.)

Defendants also rely heavily on the Court's January 28, 2026, order granting Defendants' motion to deem Plaintiffs' requests for admission admitted. (SS, Nos. 1-7.)

Defendants have not met their initial burden

Defendants have not met their initial burden on summary judgment. Although Defendants rely extensively on the Court's January 28, 2026, order deeming Plaintiffs' requests for admission admitted, surprisingly, Defendants failed to submit the underlying requests for admission with the moving papers. (Motion, p. 9; SS, Nos. 2-7.) The order establishes that requests for admission were deemed admitted, but without the requests themselves, the Court cannot determine what facts were admitted or whether those admissions negate an element of Plaintiffs' causes of action. Defendants' Separate Statement merely asserts that the requests for admission addressed Plaintiffs' causes of action and that the causes of action are therefore without merit. (SS, Nos. 1-2.)

The Separate Statement does not cure this deficiency. California Rules of Court, rule 3.1350(d) requires the moving party to separately identify each material fact claimed to be undisputed and cite the evidence establishing that fact. Here, rather than identify the particular facts established by the deemed admissions, Defendants largely state ultimate legal conclusions. For example, Defendants assert that "there was no battery of plaintiffs," that Defendants acted "timely and reasonably," and that Defendants are entitled to judgment on the individual causes of action, while citing generally to the order deeming the unidentified requests for admission admitted. (SS, Nos. 3-7.) Because the underlying factual propositions contained in the requests for admission are neither set forth in the Separate Statement nor established by the cited evidence, the Court cannot determine what facts were deemed admitted or whether those facts establish that one or more elements of Plaintiffs' causes of action cannot be established.

Nor does Defendants' remaining evidence satisfy their initial burden. Defendants rely on an entomologist report reflecting an inspection conducted on December 10, 2025, approximately three years after Plaintiffs' December 2022 stay, as well as City of Pasadena records from 2025. (SS, Nos. 1-7.) These materials do not establish the condition of Plaintiffs' hotel room at the time of the alleged incident in December 2022. Moreover, although Defendants assert that Plaintiffs' discovery responses contain no evidence supporting their claims, Defendants did not submit those discovery responses with the moving papers. (SS, No. 1.)

Thus, even assuming the January 28, 2026, order deeming the requests for admission admitted remains in effect, Defendants have not established the substance of those admissions or otherwise demonstrated through the evidence submitted with the moving papers that one or more elements of each challenged cause of action cannot be established. Because Defendants have not met their initial burden under Code of Civil Procedure section 437c, subdivision (p)(2), the burden does not shift to Plaintiffs, and the Court need not determine whether Plaintiffs have demonstrated a triable issue of

material fact.

Based on the foregoing, the Court DENIES Defendants' motion for summary judgment, and in the alternative, summary adjudication.

IV. ORDER

The Court DENIES Defendants' motion for summary judgment, and in the alternative, summary adjudication without prejudice.

Defendants are to give notice.

Dated: August 20, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT

[TENTATIVE] ORDER GRANTING DEFENDANTS' MOTIONS TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE and GRANTING MONETARY SANCTIONS

I. INTRODUCTION

Plaintiffs Gohar Bosnuyan, Eric Vivanco-Perez and David Bosnuyan, a minor, by Gohar Bosnuyan as his guardian ad litem ("Plaintiffs"), bring this action against Defendants Hyland Inn Near Pasadena Civic Center; RVN Inc. and Vimal Patel ("Defendants"), alleging causes of action for (1) battery, (2) negligence, (3) intentional infliction of emotional distress, (4) fraudulent concealment, (5) private nuisance, (6) public nuisance, and (7) breach of contract. Plaintiffs allege they were knowingly assigned to a hotel room infested with bedbugs, which caused physical and emotional injuries, property damage, and other harm.

On April 13, 2026, Defendants filed a motion to compel further responses to Requests for Production of Documents (RFP), Set One, as to Plaintiff David Bosnuyan. On April 14, 2026, Defendants filed substantially identical motions as to Plaintiffs Gohar Bosnuyan and Eric Vivanco-Perez. Defendants also seek monetary sanctions against Plaintiffs and their counsel. No oppositions were filed.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general.

III. ANALYSIS

Defendants move to compel Plaintiffs Gohar Bosnuyan, Eric Vivanco-Perez, and David Bosnuyan to provide further verified responses to RFP, Set One, Nos. 2, 3, 5, 6, 8-11, 17, and 22, without objection, and to produce all responsive documents. (Motions, p. 2.) The motions are unopposed.

Defendants initially served the RFP, Set One on Plaintiffs on June 27, 2025. After several extensions, Plaintiffs served responses in February 2026. Defendants contend the responses were deficient and failed to provide substantive, code-compliant responses to the requests at issue. Defendants thereafter sent a meet-and-confer letter on March 10, 2026, requesting further responses by March 24, 2026. Plaintiffs did not provide further responses by that date. Plaintiffs subsequently requested an additional two-week extension, which Defendants granted through April 8, 2026. According to Defendants, no further responses were served by the extended deadline and to date. (Woodwark Decl., ¶¶ 2-11.)

RFP Nos. 2, 3, 5, 6, 8-11, 17, and 22.

These requests seek documents concerning Plaintiffs' allegations of bedbugs and other uninhabitable conditions at the Subject Property, including documents supporting their claims that bedbugs were present; that Plaintiffs reported the bedbugs and other habitability issues to Defendants; that Defendants knew or should have known of the infestation, failed to remedy the conditions, or ignored Plaintiffs' complaints; and that Plaintiffs' personal property was damaged. The requests also seek communications to Defendants concerning the alleged conditions and documents relating to any investigation of those conditions.

The Court finds the requests relevant and reasonably calculated to lead to the discovery of admissible evidence concerning Plaintiffs' claims regarding the alleged bedbug infestation, Defendants' notice of the alleged conditions, Plaintiffs' complaints to Defendants, Defendants' response to those complaints, and Plaintiffs' claimed damages. Although Plaintiffs generally state they will comply and produce responsive documents, the responses do not state whether compliance will be in whole or in part or that all responsive documents in Plaintiffs' possession, custody, or control will be produced, as required by Code of Civil Procedure section 2031.220. Moreover, several of the documents identified do not appear responsive to the particular requests. For example, in response to requests concerning personal property damage and Defendants' alleged failure to remedy the conditions, Plaintiff identifies medical records, online reviews, and public records that do not appear to address those subjects. (See SS, p. 6.)To the extent Plaintiffs are unable to comply with a request, the response must instead comply with section 2031.230, including by affirming that a diligent search and reasonable inquiry were made and stating the reason for the inability to comply. Thus, the Court finds that further responses are warranted.

The Court GRANTS Defendants' motions to compel further responses to RFP Nos. 2, 3, 5, 6, 8–11, 17, and 22

Sanctions

Code of Civil Procedure sections 2030.300, subdivision (d), and 2031.310, subdivision (h), provide that the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the Court finds the party acted with substantial justification or that other circumstances make the imposition of sanctions unjust.

Defendants seek monetary sanctions of \$1,060 against each Plaintiff and Plaintiffs' counsel. Defense counsel states she spent approximately 4.5 hours preparing the motion, separate statement, proposed order, and declaration, and anticipated an additional three hours reviewing any opposition and preparing a reply, at a billing rate of \$215 per hour. (Woodward Decl., ¶ 12.)

The Court finds sanctions warranted but reduces the amount requested. The three motions are substantially identical, and no oppositions were filed. The Court finds 2.5 hours at counsel's hourly rate of \$215, plus \$120 in filing fees for the three motions, reasonable. Thus, the Court awards monetary sanctions in the total amount of \$657.50 against Plaintiffs and their counsel, jointly and severally.

IV. ORDER

The Court GRANTS Defendants' motions to compel further responses to RFP Nos. 2, 3, 5, 6, 8-11, 17, and 22. Plaintiffs are ordered to provide verified, code-compliant further responses and produce all responsive documents within 30 days of notice of this order.

The Court further GRANTS Defendants' request for monetary sanctions in the reduced amount of \$657.50, jointly and severally against Plaintiffs and their counsel to be paid within 30 days of notice of this order

Defendants are to give notice.

Dated: August 20, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT

[TENTATIVE] ORDER GRANTING DEFENDANTS' MOTIONS TO COMPEL FURTHER SPECIAL INTERROGATORIES, SET ONE and GRANTING MONETARY SANCTIONS

I. INTRODUCTION

Plaintiffs Gohar Bosnuyan, Eric Vivanco-Perez and David Bosnuyan, a minor, by Gohar Bosnuyan as his guardian ad litem ("Plaintiffs"), bring this action against Defendants Hyland Inn Near Pasadena Civic Center; RVN Inc. and Vimal Patel ("Defendants"), alleging causes of action for (1) battery, (2) negligence, (3) intentional infliction of emotional distress, (4) fraudulent concealment, (5) private nuisance, (6) public nuisance, and (7) breach of contract. Plaintiffs allege they were knowingly assigned to a hotel room infested with bedbugs, which caused physical and emotional injuries, property damage, and other harm.

On April 13, 2026, Defendants filed a motion to compel further responses to Special Interrogatories (SPROGS), Set One, as to Plaintiff Gohar Bosnuyan. On April 14, 2026, Defendants filed substantially identical motions as to Plaintiffs and David Bosnuyan and Eric Vivanco-Perez. Defendants also seek monetary sanctions against Plaintiffs and their counsel. No oppositions were filed.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general

III. ANALYSIS

Defendants move to compel Plaintiffs Gohar Bosnuyan, Eric Vivanco-Perez, and David Bosnuyan to provide further verified responses to SPROGS, Set One, Nos 4, 6, 7, 8–18, and 22–33, without objection. (Motions, p. 2.) The motions are unopposed.

Defendants initially served the SPROGs, Set One on Plaintiffs on June 27, 2025. After several extensions, Plaintiffs served responses in February 2026. Defendants contend the responses were deficient and failed to provide substantive, code-compliant responses to the interrogatories at issue. Defendants thereafter sent a meet-and-confer letter on March 10, 2026, requesting further responses by March 24, 2026. Plaintiffs did not provide further responses by that date. Plaintiffs subsequently requested an additional two-week extension, which Defendants granted through April 8, 2026. According to Defendants, no further responses were served by the extended deadline and to date. (Woodwark Decl., ¶¶ 2-11.)

SPROGS Nos. 4, 6, 7, 8-18 and 22-23

These interrogatories seek facts, witnesses, and documents supporting Plaintiffs' claims concerning their alleged emotional distress and personal property damage; the alleged bedbug infestation and Plaintiffs' alleged bites; Defendants' prior knowledge of the infestation; reports of alleged habitability violations to Defendants and governmental entities; notice of such violations by governmental entities; and Plaintiffs' claims for specific and punitive damages.

The Court finds the interrogatories relevant and reasonably calculated to lead to the discovery of admissible evidence concerning Plaintiffs' claims and damages. Under Code of Civil Procedure section 2030.220, each answer must be as complete and straightforward as the information reasonably available to the responding party permits. If the responding party lacks sufficient personal knowledge to respond fully, the party must so state, but must make a reasonable and good faith effort to obtain the information by inquiry of other persons or organizations.

Here, several of Plaintiffs' responses do not fully answer the particular interrogatories. For example, in response to interrogatories seeking all facts supporting claims for emotional distress, personal property damage, and punitive damages,

Plaintiffs provide generalized allegations concerning Defendants' conduct without fully identifying the facts supporting the particular claimed injury or damages. (See SS, pp. 3-6, 20-22.) Other responses identify broad categories of persons or documents without explaining how they possess knowledge of or support the particular contention at issue. (See, e.g., SS, pp. 12-13.) Plaintiffs also repeatedly state that discovery and investigation remain ongoing and reserve the right to supplement their responses at a later time, rather than providing complete responses based on the information reasonably available to them. Thus, the Court finds that further responses are warranted.

Thus, the Court GRANTS Defendants' motions to compel further responses to SPROG Nos. 4, 6, 7, 8-18, and 22-33

Sanctions

Code of Civil Procedure sections 2030.300, subdivision (d), and 2031.310, subdivision (h), provide that the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the Court finds the party acted with substantial justification or that other circumstances make the imposition of sanctions unjust.

Defendants seek monetary sanctions of \$1,060 against each Plaintiff and Plaintiffs' counsel. Defense counsel states she spent approximately 4.5 hours preparing the motion, separate statement, proposed order, and declaration, and anticipated an additional three hours reviewing any opposition and preparing a reply, at a billing rate of \$215 per hour. (Woodward Decl., ¶ 12.)

The Court finds sanctions warranted but reduces the amount requested. The three motions are substantially identical, and no oppositions were filed. The Court finds 2.5 hours at counsel's hourly rate of \$215, plus \$120 in filing fees for the three motions, reasonable. Thus, the Court awards monetary sanctions in the total amount of \$657.50 against Plaintiffs and their counsel, jointly and severally.

IV. ORDER

The Court GRANTS Defendants' motions to compel further responses to SPROGs, Set One, Nos. 4, 6, 7, 8-18, and 22-33. Plaintiffs are ordered to provide verified, code-compliant further responses and produce all responsive documents within 30 days of notice of this order.

The Court further GRANTS Defendants' request for monetary sanctions in the reduced amount of \$657.50, jointly and severally against Plaintiffs and their counsel to be paid within 30 days of notice of this order.

Defendants are to give notice.

Dated: August 20, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT

[TENTATIVE] ORDER DENYING

DEFENDANTS' SECOND MOTION TO COMPEL PAYMENT OF ADDITIONAL SANCTIONS

I. INTRODUCTION

Plaintiffs Gohar Bosnuyan, Eric

Vivanco-Perez and David Bosnuyan, a minor, by Gohar Bosnuyan as his guardian ad

litem ("Plaintiffs"), bring this action against Defendants Hyland Inn Near

Pasadena Civic Center; RVN Inc. and Vimal Patel ("Defendants"), alleging causes

of action for (1) battery, (2) negligence, (3) intentional infliction of

emotional distress, (4) fraudulent concealment, (5) private nuisance, (6)

public nuisance, and (7) breach of contract. Plaintiffs allege they were

knowingly assigned to a hotel room infested with bedbugs, which caused physical

and emotional injuries, property damage, and other harm.

On June 5, 2026, Defendants filed

the instant Second Motion to Compel Payment of Additional Sanctions, seeking

payment of previously ordered sanctions and additional sanctions arising from

Plaintiffs' continued nonpayment. The motion is unopposed.

II. LEGAL STANDARD

California Rules of Court, rule

2.30(b) provides that "the court may order a person, after written notice and

an opportunity to be heard, to pay reasonable monetary sanctions to the court

or an aggrieved person, or both, for failure without good cause to comply with

the applicable rules.” (Cal. Rules of Court, rule 2.30, subd. (b).) Courts also have inherent authority to enforce their own orders. (See Code Civ. Proc., § 128, subd. (a)(4).) Conduct subject to sanctions includes misuse of the discovery process, such as disobeying a court order to provide discovery. (See Code Civ. Proc., § 2023.010, subd. (g).).

III. ANALYSIS

Defendants

move for an order compelling Plaintiffs Gohar Bosnuyan, Eric Vivanco-Perez, and David Bosnuyan to pay the previously ordered monetary sanctions of \$705.00 and \$812.50, and for additional monetary sanctions incurred in bringing the present motion.

On January 28, 2026, the Court ordered Plaintiffs to pay Defendants monetary sanctions of \$705.00. After Plaintiffs failed to pay that amount, Defendants moved to compel payment. On April 17, 2026, the Court granted that motion and awarded an additional \$812.50 in monetary sanctions, payable within 30 days. As of date, no payments have been made.

California Rules of Court, rule

2.30(b) permits the Court, after written notice and an opportunity to be heard, to impose reasonable monetary sanctions for failure without good cause to

comply with applicable rules. The Court also has inherent authority to compel obedience to its orders. (Code Civ. Proc., § 128, subd. (a)(4).)

This motion is unopposed. Nevertheless,

the Court declines to issue another order compelling Plaintiffs to pay the previously ordered monetary sanctions. The January 28, 2026, and April 17, 2026, orders remain in effect, and Plaintiffs remain obligated to comply with those orders. A further order directing Plaintiffs to pay the same sanctions would merely duplicate the Court's existing orders, which this Court views as a fruitless task. Defendants have the right to pursue any other legally authorized remedy available under these circumstances as they see fit.

Further, the Court DENIES to award any additional monetary sanctions incurred in bringing this motion.

IV. ORDER

The Court DENIES

Defendants' Second Motion to Compel Payment of Sanctions.

Defendants are to give notice.

Dated: August 20, 2026

JARED

D. MOSES

JUDGE OF THE SUPERIOR COURT